



BUILDINGS **2026-007** **BULLETIN** **TECHNICAL**

ISSUANCE DATE
April 14, 2026



ISSUER: Keith L. Wen, R.A. 
Assistant Commissioner
Code & Zoning Interpretation

PURPOSE: This Bulletin rescinds 9 TPPNs, 14 Memoranda, which were issued by the Department but are no longer applicable under current Codes and Local Laws.

SUBJECT(S): Rescinding PPNs, and Memoranda

RESCINDED DOCUMENTS

APPN 13/87, APPN 05/90

LPPN 01/87, LPPN 04/87, LPPN 02/89, LPPN 02/91, LPPN 03/94

OPPN 03/88, OPPN 04/90

Memo 01-19-76, Memo 12-01-78, Memo 10-23-79, Memo 01-22-79, Memo 11-20-79, Memo 12-03-80, Memo 06-25-81, Memo 01-12-82, Memo 06-13-82, Memo 11-26-82, Memo 11-10-82, Memo 06-04-82, Memo 08-02-82, Memo 05-31-89

BACKGROUND

The Department of Buildings periodically reviews published Buildings Bulletins (BB), Policy and Procedure Notices (Technical, Operational, Legal, Administrative, OTCR) and the various Directives, Executive Orders, Memoranda and Letters issued in the past to ensure their continued consistency with current Departmental practice and to verify that new laws and regulations are incorporated into these documents.

The above listed Directives, Letter and Memoranda are rescinded effective immediately and are attached therein.

The rescinded documents will appear on the Department's website with the watermark **RESCINDED**. Because this review is ongoing, documents not specifically listed in this Bulletin may be addressed in future Bulletins. Watermarked Directives, Executive Orders, Memoranda, and Letters may be accessed through the online version of this Bulletin located at www.nyc.gov/site/buildings/codes/building-bulletins.page.



DEPARTMENT OF BUILDINGS
EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N. Y. 10011
CHARLES M. SMITH, Jr., R.A., *Commissioner*

CHARLES R. FOY, Esq.
General Counsel

LEGAL
POLICY AND PROCEDURE NOTICE # 2/89

To: DISTRIBUTION

From: CHARLES R. FOY, Esq.
General Counsel

Date: MAY 8, 1989

Subject: GUIDELINES FOR RULEMAKING PROCEDURES
PURSUANT TO CAPA §1043

The rulemaking process mandated by the recently enacted City Administrative Procedure Act (the "Act"), significantly amends the prior procedures utilized for rule promulgation by requiring, that except in emergency situations, a public hearing be held prior to a rule being adopted by any city agency. In order to ensure that the rulemaking procedures employed by the Department of Buildings are consistent, afford procedural due process to those parties interested in submitting comments, and serve the intent of the Act to make governmental process more accessible for the public, the following guidelines are to be employed in the rulemaking process.

1. PREHEARING PROCEDURE.

Rules that are proposed to be adopted by the department should first be reviewed internally, i.e., through distribution to the Executive Staff for comments. A sample of the format to follow in drafting a proposed rule is attached hereto as attachment "A".

After internal review a copy of the notice of opportunity to comment shall be transmitted to the Law Department for an independent review by that agency to determine that the proposed rule is within the departments' statutory authority. This transmission is to be accompanied by a form attached hereto as attachment "B". The staff member responsible for drafting the rule shall fill out this form and send it to the General Counsel's Office. After the General Counsel's Office has received the proposed rule and transmission sheet, it will

review it for legal sufficiency and upon signing off on the proposed rule, the General Counsel's Office will transmit it to the Law Department.

Subsequent to the Law Department's review, the date for public hearing on the proposed rule will be set. The notice must conspicuously state the date and time of the hearing. Unless otherwise specified, all hearings on proposed rules will take place at the Executive Offices of the Department, 60 Hudson Street, 14th Floor, New York, New York 10013. Additionally, the major media must be notified of the proposed rule and hearing. The list of major media which must be notified by the person drafting the rule is attached hereto, as attachment "C". Trade journals which are customarily notified of Department directives and memoranda should be included in this list. Please note: this list will be modified by the Mayor's office in the near future.

The Office of Executive Engineer will transmit the proposed rule to the City Record for its first publication date.

Written comments respecting the proposed rule may be submitted at any time from the date of initial publication until the time that the Commissioner or his designee declares the hearing is closed. Written comments shall be addressed to the department representative designated in the publication.

Any party wishing to attend and/or testify at the scheduled hearing is required to submit a form, available from the Department, entitled "Notice of Intention to Attend and/or Testify at Rulemaking Hearing" no later than 5 days prior to the scheduled hearing date. Said form, a copy of which is attached hereto, as attachment "D", may be obtained at the Executive Offices of the Department, 60 Hudson Street, 14th Floor, New York, New York 10013, by contacting the department representative designated in the publication. A failure to file said form will result in a denial to a request to offer oral testimony on the scheduled hearing date, but will not preclude interested parties from making a written submission.

2. RULEMAKING HEARING.

The Commissioner or his designee will preside at the rulemaking hearing, and make all determinations with regard to substantive and procedural matters. The right to reasonably limit the amount of time that interested parties have in offering oral evidence at the hearing is expressly reserved. Where it is determined that all relevant testimony may not be elicited at the originally scheduled hearing due

to time constraints, the hearing may be adjourned to another date and time. At such time as it is determined that all relevant information has been submitted the rulemaking hearing shall be declared closed. Thereafter, the Commissioner or his designee shall proceed to determine what final rule, if any, should be promulgated.

3. POST-HEARING PROCEDURE.

The public record for the rulemaking procedures shall be comprised of the proposed rule, all written comments submitted, and a summary of the oral testimony elicited at the hearing, to be maintained by stenography, audio tape or manual transcription. Said record should be delivered by the hearing representative to the custody of the Department's Executive Engineer. All of the aforementioned material shall be readily available for inspection within 30 days after the hearing is declared closed by the Commissioner or his designee, notwithstanding the fact deliberation concerning the proposed rule is ongoing. Those who desire to inspect the public record for rulemaking shall submit requests for such inspection of the public record to the Department's Executive Engineer, 60 Hudson Street, New York, New York 10013.

When deliberation of the proposed rule is concluded, the final rule, which may include revisions based upon consideration of relevant comments, will be transmitted by the Executive Engineer to the City Record for final publication. The rule will take effect 30 days after the second publication.

Internally, that office of the Department requesting the rule shall incorporate the adopted rule into a policy and procedure format.



DEPARTMENT OF BUILDINGS
EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N. Y. 10013
CHARLES M. SMITH, Jr., R.A., *Commissioner*

CHARLES R. FOY, Esq.
General Counsel

M E M O R A N D U M .

To: Distribution

From: Charles R. Foy
General Counsel *CRF*

Date: May 31, 1989

Re: NOTIFICATION UNDER CAPA;
REFER TO LPPN 2/89

Pursuant to direction from the Law Department, effective May 30, 1989 notice requirements of the agency under CAPA will consist of:

- i. any newspaper of any labor union or trade association representing an industry which would be affected by the rule; and
- ii. any community newspaper or any other publication that requests notification from the agency on an annual basis; and
- iii. civic organizations, e.g. BIAC, that requests notifications from the agency on an annual basis.

All other media and newspaper notification as required under LPPN 2/89, attachment C, may be modified to the extent that all radio and television stations broadcasting in the city and newspapers having a city-wide or borough wide circulation will not have to be notified by the Department directly.

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: November 20, 1979

TO: Borough Superintendents
FROM: Cornelius F. Dennis, P. E.,
Asst. Comm.-Operations
SUBJECT:

DOCKET SHEETS - REVISION NO. 3.

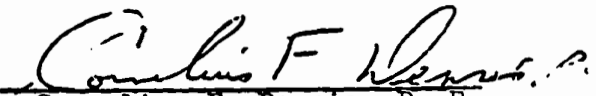
On November 13, 1978, a departmental memorandum was issued indicating the "Distribution of Borough Office Docket Sheets".

On December 1, 1978, Revision No. 1 was issued to add Item 15 to Chart No. 1.

On January 22, 1979, Revision No. 2 was issued, applicable only to Staten Island, not requiring transmittal of any docket sheets to the Borough Maintenance Engineer of the Division of Highways of the Department of Transportation.

This revision (No. 3) is made to Chart No. 1 which is applicable to all boroughs to add the Director of Community Boards of the Office of the Borough President to the list of Agencies to receive copies of the docket sheets. It is important that the docket sheets be sent regularly on weekly basis to them. It is expected that they will then make the docket sheets available to Community Boards within their Borough.

Revised Chart No. 1 dated November 20, 1979 (3 sheets) and Revised Chart No. 2 dated November 20, 1979 (1 sheet) are enclosed herewith incorporating Revisions No. 1, 2 and 3.


Cornelius F. Dennis, P. E.
Asst. Commissioner-Operations

CFD/WCK/ah

Attachments

(Chart No. 1 & Chart No. 2)

cc: Commissioners: Fruchtman, Minkin, Parascandola
Borough Office Managers
Director of Community Boards,
Office of Borough Presidents
Messrs. Kupfer, Polsky

1657

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: Dec. 1, 1978

TO: Borough Superintendents

FROM: Philip E. Olin, P.E., Director of Operations

SUBJECT: DOCKET SHEETS

Attached herewith is a copy of a memorandum entitled "Distribution of Borough Office Docket Sheets" which was revised December 1, 1978 (Revision No.1) to add Item 15 to Chart No. 1.

Please arrange to have copies of the appropriate borough office docket sheets sent to the new added agency immediately.

P.E. Olin P.E.
Philip E. Olin, P. E.
Director of Operations

PEO:WCK:ah

Attachments

Distribution:

Commissioner Fruchtman
Deputy Commissioner Minkin
Deputy Commissioner Parascandola
Asst. Director of Operations Kupfer
Borough Office Managers
NESHAPS Coordinator Marcus Kantz.

CHART No. 1 - Nov. 1, 1978

[illegible]

TOTAL.

RESCINDED
BY
BUILDINGS
BULLETIN
2026-07

DISTRIBUTION OF BOROUGH OFFICE DOCKET SHEETS

CHART No.L.- Nov.1, 1978

AGENCY / DOCKET SHEET

	N.B.	ALT.	B.N.	DEMO.	ELEV.	MISC.	EMEC.SIGNS.	P. K. B.
1. Retained for use at Borough Office.								
2. Division of Licenses, Department of Consumer Affairs 80 Lafayette Street, New York, N.Y., 10013								
3. Division of Real Property Assessment Department of Finance (Borough Office)								
4. Code Enforcement of the Office of Rent & Housing Maintenance, Department of Housing Preservation & Development, (Borough Office)								
5. Borough Maintenance Engineer; Division of Highways, Department of Transportation (Borough Office) Except. S. I., to 40 Worth St., New York, N.Y., 10013								
6. New York City Transit Authority 370 Jay Street, Brooklyn, N.Y., 11201 Attn: Mr. George Ziegler, Div. Engineer, 10th Floor * Staten Island Transmit N.B. Docket Sheet only.								
7. City Planning Commission, 2 Lafayette Street, New York, N.Y., 10007 Attn Ms. Chandra Hauptman, Room 2214								
8. Bureau of Pest Control; Department of Health 125 Worth Street, New York, N.Y., 10013 Attn: Mr. Randy Dupree - Room 320								

1522

ADDITIONAL DISTRIBUTION OF BOROUGH OFFICE DOCKET SHEETS

CHART No. 2 - Nov. 1, 1978

AGENCY / DOCKET SHEET

		N.B.	ALT.	B.N.	DEMO.	ELEV.	MISC.	ELEC. SIGN.	P.R.S.	P.A.
<u>BRONX</u>										
1.	Superintendent of Delivery & Collections, General Post Office, Bronx, N.Y., 10451									
<u>BROOKLYN</u>										
<u>MANHATTAN</u>										
1.	Office of Borough President (Borough Office)									
2.	Mr. Arnold Bronstoph, Office of Inspector General, Dept. of Housing Preservation & Development, 2 Lafayette St., New York, N.Y., 10007									
3.	Office of Midtown Planning & Development % Elaine Bushell 220 West 42nd Street, (23rd Floor) New York, N.Y., 10036									
4.	Department of Traffic 28-11 Bridge Plaza, Long Island City, N.Y., 11101 Attn: Marvin Gottesman									
5.	Midtown Enforcement Project; 326 West 42nd St. New York, N.Y., 10036 Attn: Mr. Carl B. Weisbrod, Director									
<u>QUEENS</u>										
1.	Board of Elections, 77-40 Vleish Place, Flushing, N.Y.									
2.	Mr. Joe Evans, % Assemblywoman Gerdi Lipcchutz, 257 Beach 116th St., Rockaway Beach, N.Y., 11694									
<u>STATEN ISLAND</u>										
1.	Office of Borough President (Borough Office)									
2.	Department of Parks, 1150 Clove Road, Staten Island, N.Y., 10301									
3.	Staten Island Advance, 950 Fingerboard Road Staten Island, N.Y.									
4.	Director, Borough Office, City Planning Commission 56 Bay Street, Staten Island, N.Y., 10301									

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: October 23, 1979

TO: Industry

FROM: George Sakana, Borough Superintendant

SUBJECT: Docket Information Sheet - Revised Memo

In our continuing effort to improve efficiency and upgrade our services to the public, we have established an improved "Docket Information Sheet" procedure. The new procedure, which will become effective November 1st, 1979 will require the following:

1- Each application submitted to the Department of Buildings Manhattan office shall include one (1) original typed "Docket Information Sheet" (B Form6) with a number of photostatic (zerex) duplicates to coincide with the following schedule:

<u>Type of Application</u>	<u>Number of Photostatic copies Required</u>
• N.B, Alteration, Building Notice, 5 Demolition, Electric Signs, Plumbing Repair Slip.	
• Elevator, Public Assembly, Misc..... 4	

This new procedure will assist in eliminating backlog and insuring the availability of up to date information.

Thank you for your continued cooperation.



cc: Harold Glantz - Director, Administrative Services
Robert Nunziato - Executive Manager
All Division Heads
Max Auster - Cashier
File

1654

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: Jan. 22, 1979

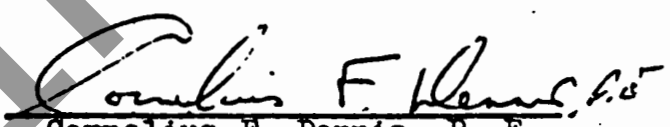
TO: Borough Superintendents
FROM: Cornelius F. Dennis, P. E.
Director of Operations
SUBJECT:

DOCKET SHEETS (Staten Island Only)

- Revision No. 2

The Departmental Memorandum dated Nov. 13, 1978 and revised Dec. 1, 1978, entitled "Distribution of Borough Office Docket Sheets" is revised only as follows:

Chart No. 1, Item No. 5 - The Staten Island Borough Office shall no longer transmit any docket sheets to the Borough Maintenance Engineer of the Division of Highways of the Department of Transportation.


Cornelius F. Dennis, P. E.
Director of Operations

CFD:WCK:ah

cc: Commissioner Fruchtman
Dep. Commissioner Minkin
Dep. Commissioner Parascandola
Asst. Dir. of Operations Kupfer
Borough Office Managers

1585

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: November 20, 1979

TO: Borough Superintendents
FROM: Cornelius F. Dennis, P. E.,
Asst. Comm.-Operations
SUBJECT:

DOCKET SHEETS - REVISION NO. 3.

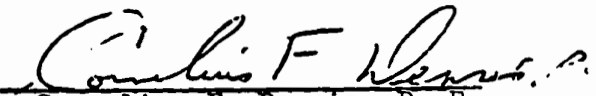
On November 13, 1978, a departmental memorandum was issued indicating the "Distribution of Borough Office Docket Sheets".

On December 1, 1978, Revision No. 1 was issued to add Item 15 to Chart No. 1.

On January 22, 1979, Revision No. 2 was issued, applicable only to Staten Island, not requiring transmittal of any docket sheets to the Borough Maintenance Engineer of the Division of Highways of the Department of Transportation.

This revision (No. 3) is made to Chart No. 1 which is applicable to all boroughs to add the Director of Community Boards of the Office of the Borough President to the list of Agencies to receive copies of the docket sheets. It is important that the docket sheets be sent regularly on weekly basis to them. It is expected that they will then make the docket sheets available to Community Boards within their Borough.

Revised Chart No. 1 dated November 20, 1979 (3 sheets) and Revised Chart No. 2 dated November 20, 1979 (1 sheet) are enclosed herewith incorporating Revisions No. 1, 2 and 3.


Cornelius F. Dennis, P. E.
Asst. Commissioner-Operations

CFD/WCK/ah

Attachments

(Chart No. 1 & Chart No. 2)

cc: Commissioners: Fruchtman, Minkin, Parascandola
Borough Office Managers
Director of Community Boards,
Office of Borough Presidents
Messrs. Kupfer, Polsky

1657

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

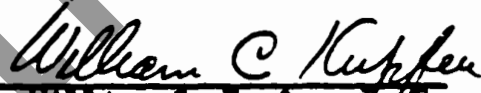
DATE: December 3, 1980

TO: Borough Superintendents

FROM: William C. Kupfer, P. E.,
Director of Special Projects

SUBJECT: DOCKET SHEETS - REVISION NO. 4

A memorandum from the Department of General Services has been received indicating that they no longer require the Demolition Docket Sheets from the Borough of Brooklyn. No Demolition Docket Sheets from other boroughs were required to be sent. The Shelter Control Section of Public Works of the Department of General Services has been discontinued. Please update your charts to indicate the change.


William C. Kupfer, P. E.
Director of Special Projects

WCK:ah

cc: Commissioners Fruchtman, Minkin, Parascandola,
Borough Office Managers
Messrs Kupfer, Polsky

1736

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: June 25, 1981

TO: Borough Superintendents

FROM: William C. Kupfer, P. E.
Director of Special Projects

SUBJECT: Docket Sheets - Revision No. 5

It will no longer be required for any borough office
to send any docket sheets to:

NESHAPS Coordinator (2-AF) U.S.

Environmental Protection Agency

Please update your charts to indicate the change.

(Chart No. 1, Item 15 on Sheet 2 of 3).


William C. Kupfer, P. E.
Director of Special Projects

WCK:ah

cc: Comm. Fruchtman, Minkin,
Parascandola
Borough Office Managers
Howard Stecker (NESHAPS)

1780

**THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS**

DEPARTMENTAL MEMORANDUM

DATE: January 12, 1982

TO: Borough Superintendents

FROM: William C. Kupfer, P. E.
Director of Special Projects

SUBJECT: DOCKET SHEETS - REVISION NO. 6.

On November 13, 1978, a departmental memorandum was issued indicating the "Distribution of Borough Office Docket Sheets".

On November 20, 1979, Revised Chart No. 1, dated November 20, 1979 (3 sheets) and Revised Chart No. 2, dated November 20, 1979, (1 sheet) was issued incorporating Revisions No. 1, 2, and 3.

On December 3, 1980, Revision No. 4 was issued indicating that the Department of General Services no longer required the Demolition Docket Sheets from the Borough of Brooklyn. No Demolition Docket Sheets from other boroughs were required to be sent.

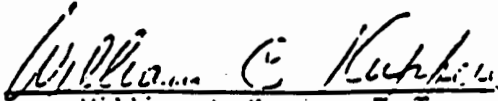
On June 25, 1981, Revision No. 5 was issued indicating that it was no longer required for any borough office to send any docket sheets to NESHAPS Coordinator (2AF):

U. S. Environmental Protection Agency
- Chart 1 - Agency #15 -

This Revision No. 6 is being issued to reinstate the issuance of docket sheets to the NESHAPS Coordinator (Please note the new address) and to add Building Notice (B.N.) docket sheets to the docket sheets already required to:

Borough Maintenance Engineer
Division of Highways
Department of Transportation
(Borough Office)
Except S. I. (send nothing)
- Chart No. 1 - Agency #5 -

Revised Chart No. 1, dated January 12, 1982 (3 sheets) and Revised Chart No. 2, dated January 12, 1982 (1 sheet) are enclosed herewith incorporating Revisions 1 thru 6.


William C. Kupfer, P.E.
Director of Special Projects

WCK:ah

Attachments (Chart No. 1 & Chart No. 2)

cc: Commissioners: Fruchtmann, Minkin, Parascandola,
Dennis, Grillo
Borough Office Managers
Mr. Polsky

1809

DISTRIBUTION OF BOROUGH OFFICE DOCKET SHEETS

CHART No. L.- JANUARY, 12, 1982 AGENCY / DOCKET SHEET

	H.B.	ALT.	B.N.	DEMO.	ELEV.	NISC.	ETEC.SIGNS.	P.R.S.	P.A.
1. Retained for use at Borough Office.									
2. Division of Licenses, Department of Consumer Affairs 80 Lafayette Street, New York, N.Y., 10013									
3. Division of Real Property Assessment Department of Finance (Borough Office)									
4. Code Enforcement of the Office of Rent & Housing Maintenance, Department of Housing Preservation & Development, (Borough Office)									
5. Borough Maintenance Engineer; Division of Highways, Department of Transportation (Borough Office) Except: S. I. (send nothing)									
6. New York City Transit Authority 370 Jay Street, Brooklyn, N.Y., 11201 Attn: Mr. George Ziegler, Div. Engineer, 10th Floor * Staten Island Transmit N.B. Docket Sheet only.									
7. City Planning Commission, 2 Lafayette Street, New York, N.Y., 10007 Attn: Ms. Chandra Hauptman, Room 2214									
8. Bureau of Pest Control; Department of Health 125 Worth Street, New York, N.Y., 10013 Attn: Mr. Randy Dupree - Room 320									

Distribution of Borough Office Docket Sheets (Cont'd.)

CHART No. 1 - JANUARY 12, 1982

AGENCY / DOCKET SHEET

	N.B.	ALT.	B.N.	DEMO.	ELEV.	MISC.	ELEC. SIGNS	F.RS	P.A.
9. Landmark Preservation Commission, 305 Broadway, New York, N.Y., 10007 Attn: Executive Director, Room 602	-	-	-	-	-	-	-	-	-
10. Water Resources, Department of Environmental Protection (Borough Office).	-	-	-	-	-	-	-	-	-
11. Air Resources, Dept. of Environmental Protection, 120 Wall Street, New York, N.Y., 10005 - Attn: Jerry Ross, Director, Enforcement Division, Rm. 1607	-	-	-	-	-	-	-	-	-
12. Bureau for Food Affairs, Department of Health 125 Worth Street, New York, N.Y., 10013 Attn: Mr. Martin S. Gellman, Director, Room 402C	-	-	-	-	-	-	-	-	-
13. Division of Fire Prevention, Fire Department, Municipal Building, Brooklyn, N.Y., 11201 Attn: Chief-in-Charge. (Room 1128)	-	-	-	-	-	-	-	-	-
14.									
15. NESHAPS/Asbestos Coordinator; Air Facilities Branch, Air & Waste Management Division; U.S. Environmental Protection Agency; 26 Federal Plaza, Room 1015; New York, N.Y., 10278. Attn: Howard Stecker	-	-	-	-	-	-	-	-	-

Sheet 2 of 3

1811

ADDITIONAL DISTRIBUTION OF BOROUGH OFFICE DOCKET SHEETS

CHART No. 2 - January 12, 1982 AGENCY / DOCKET SHEET

		N.B.	ALT.	B.N.	DEMO.	ELEV.	MISC.	ELEC. SIGN.	P.R.S.	P.A.
<u>BRONX</u>										
1.	Superintendent of Delivery & Collections, General Post Office, Bronx, N.Y., 10451	1			1					
<u>BROOKLYN</u>										
<u>MANHATTAN</u>										
1.	Office of Borough President (Borough Office) See Chart #1, Item 16.						1	1	1	1
2.	Mr. Arnold Bronsoph, Office of Inspector General, Dept. of Housing Preservation & Development, 2 Lafayette St., New York, N.Y., 10007				1					
3.	Office of Midtown Planning & Development & Elaine Bushell 220 West 42nd Street, (23rd Floor) New York, N.Y., 10036	1								
4.	Department of Traffic 28-11 Bridge Plaza, Long Island City, N.Y., 11101 Attn: Harvin Gottesman				1					
5.	Midtown Enforcement Project; 326 West 42nd St. New York, N.Y., 10036 Attn: Mr. Carl B. Weisbrod, Director		1	1						
<u>QUEENS</u>										
1.	Board of Elections, 77-40 Vleish Place, Flushing, N.Y.	1								
2.	Mr. Joe Evans, Assemol: woman Gerdi Lipcautz, 257 Beach 116th St., Rockaway Beach, N.Y., 11694				1					
<u>STATEN ISLAND</u>										
1.	Office of Borough President (Borough Office) See Chart #1, Item 16						1	1	1	1
2.	Department of Parks, 1150 Clove Road, Staten Island, N.Y., 10301	1			1					
3.	Staten Island Advance, 950 Fingerboard Road Staten Island, N.Y.	1	1	1	1					
4.	Director, Borough Office, City Planning Commission 56 Bay Street, Staten Island, N.Y., 10301	1								

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: June 15, 1982

TO: Borough Superintendents

FROM: William C. Kupfer, P.E.
Director of Special Projects

SUBJECT: DOCKET SHEETS - REVISION NO. 7. (MANHATTAN ONLY)

This Revision No. 7 is being issued so as to include the distribution of certain Manhattan docket sheets to the Clinton Neighborhood Preservation Office of N.P.D.

Refer to the enclosed revised Chart No. 2, dated June 21, 1982 (1 sheet) for details.

WCK:ah


William C. Kupfer, P.E.
Director of Special Projects

cc: Commissioners Fruchtman, Minkin,
Parascandola, Dennis, Grill
Boro Office Managers
Exec. Engineer Polsky

Attachment (Chart No.2)

1861

ADDITIONAL DISTRIBUTION OF BOROUGH OFFICE DOCKET SHEETS

CHART No. 2 - June 21, 1982

AGENCY / DOCKET SHEET

	N.B.	ALT.	B.N.	DEMO.	ELEV.	MISC.	ELEC.SIO'S	P.R.S.	P.A.
BRONX									
Superintendent of Delivery & Collections, General Post Office, Bronx, N.Y., 10451	1			1					
BROOKLYN									
MANHATTAN									
Office of Borough President (Borough Office) See Chart #1, Item 16.					1	1	1	1	1
Mr. Arnold Bronstoph, Office of Inspector General, Dept. of Housing Preservation & Development, 2 Lafayette St., New York, N.Y., 10007				1					
Office of Midtown Planning & Development & Elaine Bushell 220 West 42nd Street, (23rd Floor) New York, N.Y., 10036	1								
Department of Traffic 28-11 Bridge Plaza, Long Island City, N.Y., 11101 Attn: Marvin Gottesman				1					
Midtown Enforcement Project; 326 West 42nd St. New York, N.Y., 10036 Attn: Mr. Carl B. Weisbrod, Director		1	1						
Clinton Neighborhood Preservation Office (N.P.D.) 500 W. 52nd St. New York, N.Y., 10012 Attn: Mr. Mel Sokol, Director		1	1	1					
QUEENS									
Board of Elections, 77-40 Vleigh Place, Flushing, N.Y.	1								
Mr. Joe Evans, % Assemolwoman Gerdi Lipchitz, 257 Beach 116th St., Rockaway Beach, N.Y., 11694				1					
STATEN ISLAND									
Office of Borough President (Borough Office) See Chart #1, Item 16					1	1	1	1	1
Department of Parks, 1150 Clove Road, Staten Island, N.Y., 10301	1			1					
Staten Island Advance, 950 Fingerboard Road Staten Island, N.Y.	1	1	1	1					
Director, Borough Office, City Planning Commission. 56 Bay Street, Staten Island, N.Y., 10301	1								

DEC 06 REC'D



ISSUANCE # 464

DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N.Y. 10013

JOEL A. MIELE, SR., P.E., Commissioner

CAROLE S. SLATER
General Counsel & Director
Office of Legal Affairs
(212) 312-8130

LEGAL
POLICY AND PROCEDURE NOTICE # 3/94

TO: Distribution

FROM: Carole S. Slater, General Counsel *CS*

DATE: November 28, 1994

RE: Five-Day Notice to Owners of Adjoining Property Pursuant to Administrative Code §27-165 and §27-169.

SUPPLEMENTS: Memoranda dated October 19, 1983 from Carol Feinstein to Borough Superintendents, Directives and Memorandums, Volume 13, pages 1956 through 1959.

PURPOSE: To clarify what is meant by "five-day notice" under Administrative Code §27-165 and §27-169.

DISCUSSION: The "five-day notice" refers to the minimum period of notice given to an adjoining property owner prior to issuance of a permit allowing the commencement of demolition, foundation or earthwork. The five day period is to be calculated as follows:

1. If the notice was personally delivered to the adjoining property owner, count five days from the date the notice was delivered to such person.
2. If the notice was mailed to the adjoining property owner count ten days from the date the notice was mailed.

No additional period of notice is required due to a holiday or weekend.

An affidavit of service may be submitted as appropriate documentation as to when and how the notice was given.



DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES

60 HUDSON STREET, NEW YORK, N. Y. 10013

CHARLES M. SMITH, Jr., R.A., Commissioner

CHARLES R. FOY, Esq.
General Counsel

ISSUANCE #56

Legal
Policy and Procedure Notice # 1/87

To: Distribution

From: Charles R. Foy, General Counsel

Subject: Freedom of Information Law

Date of Issuance: November 4, 1987

Directive No. 2 of 1979 dated May 1, 1979 and Administrative Policy and Procedure Notices #2/87 and #14/87 are superseded by the following:

In order to comply with the State Freedom of Information Law, as amended, the following records are to be considered as public records in conformance with the law and are to be made available to the public in a manner that will not interfere with the normal operation of the borough offices. All building applications, plans, certificates of occupancy, index cards and index printouts, violation orders and complaints with the complainant's name and address deleted, shall be made available to the public upon request, subject to the following conditions which are required to prevent interference with the procedures and operations of the department and to provide for orderly inspection and security of the records:

1. Plan Desk Files

Applications which are on file in the plan record room may be examined upon presentation of a request on the prescribed form of the department. Such records may not be taken from the public area of the plan record room. Records will be available at the plan record room only during normal operating hours. Consents of owners shall not be required.

2. Plan Examination Files

Applications which have not been approved or which are not in the plan record room because of amendment or other reason, may be examined upon request made to the Borough Chief Engineer. Consent of an owner or architect shall not be required. The Borough Chief Engineer shall require that the inspection of records be made under the supervision of a person designated by him, and that inspection be made at such time as not to interfere with plan examination or other functions of the department.

3. Block and Lot Files

Block and lot records may be examined upon request in writing, on department forms, during normal operating hours of the plan record room. Records may not be taken out of the public area in the plan record room. Consent of the owners or other persons shall not be required.

4. Records in Litigation

Reports or other records made in association with a claim against the city or for use in any investigations authorized by the Charter are not to be released to the public unless authorized by the General Counsel of this Department or the Corporation Counsel's office. Reports relating to injuries or deaths shall be considered to be in this category.

5. Violation Orders

Violation orders may be viewed by the public at any time of the day, provided there is no interference with the normal operation of the department, as determined by the person in charge of the Violation Section. Records may not be taken out of the section.

6. Receipts for Records

A receipt shall be required for every record. Whenever a record has not been returned by closing time for the day, the Deputy Borough Superintendent shall be notified.

7. Complaints

Complaints, with the name and address of the complainant deleted, relating to buildings or premises shall be released to the public upon request. Complaints may be released to the complainant without deletion of the complainant's name and address.

8. Copies of Records

Copies of records may be issued upon requests in writing and upon payment of applicable fees. Persons may be permitted to look at records and to make notes and sketches without payment of fees where such practice does not interfere with the normal operation of the office.

9. Directives and Memorandums

Copies of directives and memorandums issued to Borough Superintendents, relating to procedures or interpretations of law, shall be made public upon request.

10. Other Memorandums and Reports

Requests for other memorandums, reports and communications between Borough Superintendents and Commissioners, or other officials of the department, shall be referred to the General Counsel's Office.

11. Board of Inquiry Minutes

The minutes of Boards of Inquiry or reports or personnel of the department concerning incidents or persons, shall not be released to the public without permission of the Commissioner.

12. Inspectors' Reports - Other Than Item 4

Reports of inspectors concerning violations, complaints and applications shall be considered public records and shall be made available at the convenience of the department. Reports of inspections, which were requested by the Commissioner, Borough Superintendent, or a member of the executive staff, shall not be released to the public until the person who requested the report or the General Counsel's Office is notified.

13. Telephone Information

Where information routinely made available to the public is requested by telephone, the information may be given over the telephone when it is readily available, otherwise the caller shall be advised to obtain the information in person.

14. Press Information

When information is requested by representatives of the press, television or other news agencies, the person making the request shall be referred to the Director of Public Affairs of the department.

15. Inquiries From Other Governmental Agencies

All inquiries from City, State or Federal Auditing Units or non-routine requests from any other government agency or elected official must be referred to Mark Ritze, Director of Program and Management Analysis (312-8025).

"Non-routine" is defined as an unusual request (e.g., the total number of applications filed on a certain day, or the number of employees in a particular section) or a request by an agency which does not normally have contact with the Department of Buildings.



ISSUANCE #71

DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES

60 HUDSON STREET, NEW YORK, N. Y. 10013

CHARLES M. SMITH, Jr., R.A., Commissioner

CHARLES R. FOY, I
General Counsel

Legal
Policy and Procedure Notice #4 /87

TO: Distribution
FROM: Charles R. Foy, General Counsel
DATE: December 28, 1987
SUBJECT: Freedom of Information Law

FEEES FOR CERTIFIED COPIES OF DEPARTMENTAL RECORDS

Administrative Policy and Procedure Notice #13/87 dated October 14, 1987, is supplemented by the following:

In order to comply with the Mayor's Uniform Rules and Regulations pertaining to the administration of the Freedom of Information Law, no additional fee should be charged for the certification of copies of departmental records. The fees to be charged remain as stated in Administrative PPN # 13/87 and are unaffected by a request that the records sought be "certified."

Therefore, twenty-five cents remains the maximum fee for certified photocopies of records that are nine inches by fourteen inches, or smaller. The only exception to this twenty-five cents maximum is for certificates of pending violations (violation searches) and photocopies of violations (except B.E.C. violations) which stay at the fee levels stated in Section 26-214 of the Building Code.



DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, NY 10013

CHARLES M. SMITH, Jr., R.A., Commissioner
312-8100

ISSUANCE # 51

Administration
Policy and Procedure Notice # 13/87

TO: Distribution
From: Charles R. Roy, General Counsel
Subject: Requests From The Public For Departmental Records
Date of Issuance: October 14, 1987

Requests for copies of records which are routinely made available for public inspection shall be handled by the Department's borough offices. (See Rule 2(a)(1) and Rule 3 of the amended Regulations Relating To Public Access to Records.) In order to comply with the Freedom of Information Law, a maximum fee of twenty-five cents is to be charged for each photocopy of departmental records not in excess of nine inches by fourteen inches except for certificates of pending violations (violation searches) and photocopies of individual violations. The fees for certificates of pending violations and for photocopies of individual violations will remain as stated in Section 26-214 of the Building Code. This exception from the twenty-five cents maximum fee limit, which applies to violation searches and copies of violations, does not apply to copies of Bureau of Electrical Control notice of violations and certificates of electrical inspection. The fee charged for any photocopy of department records which is larger than nine inches by fourteen inches is to be the actual cost of reproduction.

All requests under the Freedom of Information Law for copies or the viewing of records which are not routinely available for public inspection must be made in writing to the Department's Record Access Officer, General Counsel's Office, 60 Hudson Street, New York, New York 10013.

Where the named Records Control Officer appoints a "designee," pursuant to Rule 3(a) of the amended Rules on Public Access to Records, this information should be forwarded to the Records Access Officer in the General Counsel's Office.



Issuance # 244

DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N.Y. 10013

RUDOLPH J. RINALDI, Commissioner

TERRY KEELY McCLAIN
Assistant Commissioner
Administration
(212) 312-8055

ADMINISTRATION
POLICY AND PROCEDURE NOTICE #5/90

TO: Distribution
DATE: June 20, 1990
SUBJECT: LL 10/81 Violation Dismissal Procedure

Violations for failure to file or late filing in a prior year may only be dismissed if a current year filing has been submitted.

Effective immediately, the procedure for dismissal of LL 10/81 violations issued for calendar 1988 and subsequent year filings will be as follows:

1. 10/81 Unit reviews violations and checks the elevator system for outstanding substantive DOB violations. Reviewer will attach a photo-copy of the property-profile printout to the 10/81 violation and return both items to the recipient of the 10/81 violation.
2. The person seeking dismissal must take this material to the Elevator Division for a "look-up" sheet of historical information. This information is to be listed on form ELV-9, Elevator Search. A copy of the form is attached.
3. The Elevation Division must prepare the "look-up" sheet and the supervising inspector verifies, by initialling the form, that the information is accurate.
4. The person seeking dismissal returns to the 10/81 Unit. The look-up sheet is reviewed and penalties are computed as appropriate by the 10/81 clerk. The Compliance Supervisor signs-off on the computation.

5. Cashier processes payment and validates computation form.
6. Compliance Supervisor dismisses/cancels 10/81 violation on-line, through the Computer System and records the violation information on the compliance log. The recipient of the violation is sent (or handed) a letter notifying him/her of the adjustment to our records.
7. The Compliance Log is reviewed by the Central Billing and Compliance Supervisor and forwarded to Quality Control.
8. The 10/81 Unit will only dismiss 1988 and subsequent 10/81 violations. For 10/81 violations issued on filing years 1987 and earlier, MIS will continue to dismiss on a batch basis upon notification by 10/81. QC forwards the compliance log to MIS for update to the Master Reference Book and the Index System. (Note: The Master Book is a listing of 1983-1987 10/81 violations, 1983-1986 waivers and mandated inspections filings from 1981-1987. This history is not completely contained in the Elevator or Compliance Systems.)
9. MIS updates the Master Reference Book and the Index System with violation information on the log. MIS will update the Master Reference Book quarterly and return the processed compliance log and the new book to the 10/81 Unit.

Questions with respect to the dismissal procedure should be referred to the Director of Revenue Operations.


Terry Keely McClain

THE CITY OF
NEW YORK



DEPARTMENT OF BUILDINGS

Elevator Search

1 Applicant Information

Applicant's Last Name		First Name	M.I.
Address		City	State ZIP
Phone ()		Relationship to Owner	
Owner's Last Name		First Name	M.I.
Building's House No.	Street Name		Borough
Block	Lot	No. of Elevator Devices	

2 Local Law 10/81 Mandatory Inspection History (check the Yes (Y) box and add Filing Date or the No (N) box for each device through the current year)

[illegible]

3 Elevator Division Information (complete only for years with no/incomplete filings for any device)

[illegible]



DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N.Y. 10013

RUDOLPH J. RINALDI, COMMISSIONER

CAROLE S. SLATER
General Counsel & Director
Office of Legal Affairs
(212) 312-8130

ISSUANCE #328

LEGAL
POLICY AND PROCEDURE NOTICE #2/91

TO: PPN DISTRIBUTION

FROM: CAROLE S. SLATER *CS*
General Counsel and Director
Office of Legal Affairs

DATE: December 17, 1991

SUBJECT: Waiver Procedures for Local Law 58/87

SUPERCEDED: Memoranda and Directives of 1988, pages 2455 - 2456, "Form Waiver Letters for Local Law 58/87"; TPPM #1/90, Waiver Procedures for Local Law 58/87, pages 2754 - 2756.

PURPOSE: To clarify procedures for obtaining a waiver of the requirements of Local Law 58/87, (accessibility for the disabled), pursuant to Administrative Code §27-292.6.

EFFECTIVE DATE: Immediately

SPECIFICS: Applicants may resolve plan examination objections based on Local Law 58/87 by revising their plans accordingly, or by obtaining a waiver from the Department of Buildings. Prior to the issuance of such a waiver, the Mayor's Office for People With Disabilities ("MOPD") shall be consulted and shall issue a recommendation to the Department. Questions involving an interpretation of Code requirements, as opposed to a waiver of Code requirements, need not be referred to MOPD.

Each waiver request to the Commissioner shall be in writing, using the waiver application form [Form PEO-1 (REV. 12/91)] attached hereto and following the directions accompanying said form.

Applicant shall forward a completed waiver request form with all supporting attachments (the "Waiver Request Package") to MOPD. MOPD shall review the Waiver Request Package and provide the Department with a written recommendation. Applicant may transmit MOPD's recommendation to the Department. If Applicant is not able to obtain a recommendation from MOPD within thirty days, the Borough Office may deem MOPD's failure to respond as a recommendation of a "denial," provided Applicant submits a copy of the Waiver Request Package, stamped "Received MOPD dated _____," evidencing Applicant's submission of the Waiver Request Package to MOPD at least thirty days earlier, and a signed statement attesting to Applicant's inability to obtain a definitive written recommendation from MOPD.

As per Code §27-292.6, Applicant's request, MOPD's recommendation and the Department's determination that a waiver should be granted must be based upon a specific finding that compliance with the requirements of Local Law 58/87 would:

- a) create an undue economic burden; or
- b) not achieve its intended objective; or
- c) be physically or legally impossible; or
- d) be unnecessary in light of alternatives which insure the achievement of the intended objective or which, without a loss in the level of safety, achieve the intended objective more efficiently, effectively or economically; or
- e) entail a change so slight as to produce a negligible additional benefit consonant with the purposes of the Code.

The Borough Commissioner may act on the request for a waiver upon receipt of the recommendation from MOPD, or thirty days after the submission to MOPD, whichever is sooner.

Agreement with MOPD recommendation

Waivers may be granted or denied by the Borough Commissioner if in agreement with the MOPD recommendation.

To grant a waiver request, the Borough Office must address in a detailed writing its findings and conclusions with respect to one or more of the bases which supports the grant.

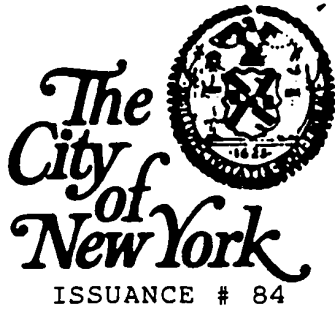
To deny a waiver request, the Borough Office must address in a detailed writing the Department's findings and conclusions with respect to each basis listed in Code §27-292.6 which Applicant presented.

The Department's determination may cite the MOPD recommendation in lieu of a detailed explanation, provided MOPD has addressed the grounds presented by Applicant.

Disagreement with MOPD recommendation

If the Borough Commissioner does not concur with the MOPD recommendation, the application shall be referred to the Assistant Commissioner for Technical Compliance for determination. Such a referral shall include the reason(s) why the Borough Commissioner believes the MOPD recommendation should not be accepted.

Applicant may appeal a Borough Commissioner's determination through the usual course of reconsideration.



DEPARTMENT OF BUILDINGS

EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, NY 10013

CHARLES M. SMITH, Jr., R.A., Commissioner

STEWART D. O'BRIEN
Deputy Commissioner
Administration & Operations
312-8001

OPERATIONS
POLICY & PROCEDURE NOTICE # 3/88

TO: Distribution

FROM: Stewart D. O'Brien, Deputy Commissioner

DATE: February 9, 1988 *2/9/88 SDO*

SUBJECT: Addendum to Directive 5 of 1974

Effective January 11, 1988, the following will be added to the Expedition of Plan Examination directive, Section B, dated March 18, 1974.

16. Applications filed to legalize long-completed work for a garage accessory to a private residence.

/yaj



DEPARTMENT OF BUILDINGS
EXECUTIVE OFFICES
60 HUDSON STREET, NEW YORK, N. Y. 10013
CHARLES M. SMITH, Jr., R.A. Commissioner

PETER FRANCONERI, P.E.
Assistant Commissioner/Operations

Issuance # 223

OPERATIONS
POLICY AND PROCEDURE NOTICE # 4/90

To: Distribution
From: Peter Franconeri
Date: February 2, 1990
Subject: BIS Plan Examination

Referenced

Directive No. 5 of 1974, P. 831-833.
Directive No. 14 of 1975, P. 980-982.
Operations Policy and Procedure Notice # 3/88, P. 2369.
Operations Policy and Procedure Notice # 29/88, P. 2509-2511.

Superseded

Departmental Memorandum, dated March 19, 1976, P. 1170.
Departmental Memorandum, dated August 12, 1976, P. 1204.

Amended

Departmental Memorandum, dated May 5, 1982, P. 1843-1848.

Purpose:

To provide a uniform method for performing first reviews of applications filed using the Building Information System (BIS).

Specifics:

This procedure applies to filings not covered under Directive 14 of 1975.

Assignment to Plan Examiner

Only "filed" applications are assigned to the plan examiners for first review. An application has been "filed" upon completion of "D.E.A.R. Processing", fee payment and submission of all necessary documents. It is listed as status "D" at this time and appears on the BIS screen listing all applications which need to be assigned to a plan examiner. (H-P/E Assignment, 3-Assign work to P/E).

On a daily basis, D.E.A.R. forwards the application folders to the Plan Examination section where a designated individual assigns the folders to specific plan examiners. This designated individual then assigns the work and causes the folders to be distributed.

First Review

Applications that have been filed and are awaiting first review are not to be made accessible to the applicant.

The name of the examiner performing the first review should not be available to the applicant before the first review has been completed.

First review of the applications assigned to each plan examiner are performed in chronological order based on the date the application was filed. All applications from "day 1" are reviewed before any applications from "day 2" are reviewed. The plan examiner reviews his or her "Backlog of Assigned Work" on a daily basis to assure that the first reviews are performed in chronological order. (H-P/E Assignment, 1- Backlog of Assigned Work).

After first review, the plan examiner sends the applicant:

- 1) "Index" printout from D.E.A.R.
- 2) "Application Overview" printout
- 3) "Items required by Plan Examiner" printout
- 4) Free form (handwritten) objections from plan examiner
- 5) An appointment notice with the date and time of the next scheduled appointment in boroughs (where applicable).

Expedites

Applications may only be expedited under the following circumstances:

- 1) An "Affordable Housing" letter is submitted.
- 2) A "Homeless Housing" letter is submitted
- 3) An expedite request is submitted, which has been approved in writing by a Deputy Borough Superintendent or higher level Department of Buildings staff.

When an "expedite" application is filed, the plan examiner completes the first review in a timely fashion, which may require deviation from the above "first review" guidelines.

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: June 4, 1982

TO: Borough Superintendents

FROM: Irving E. Minkin, P.E., Deputy Commissioner

SUBJECT: Violation Dismissal Procedure; Local Law No. 10/80

In order to dismiss violations for hazardous conditions, as well as to ascertain that precautionary work has been satisfactorily completed, the following procedure will be followed:

A. Dismissal of Hazardous Violations

The professional that filed the original report, or another professional, is to file an affidavit indicating that all of the hazardous conditions noted in the original report have been corrected. The professional is to reference the affidavit with the original report, block, lot, address (include all street addresses), owners name, and original violation numbers. He is also to indicate the name of the firm that did the repair work.

A copy of the affidavit is to be sent to Assistant Commissioner J. Grill at 120 Wall Street, who will then have the violation dismissed in Central Office records, and so indicate to the Borough Superintendent, Inspector General Klein, and the owner of the property.

B. Precautionary Corrections (Ordinary Repairs)

A similar affidavit regarding the precautionary corrections is to be filed in the same manner as described above for dismissal of hazardous violations; and, the Department will process the affidavit attesting to satisfactory completion of all repairs in a manner similar to that noted above for dismissal of hazardous violations.


Irving E. Minkin, P.E.
Deputy Commissioner

IEM:ow

cc: Commissioner Fruchtman
Deputy Commissioner Parascandola
Mayor's Office of Operations
(Att: Carol Felstein, Mary Jane Wilson)
Assistant Commissioner Dennis
Assistant Commissioner Grill
Executive Staff
BIAC
Professional Society
City Agencies

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THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: November 26, 1982

TO: Borough Superintendents

FROM: Deputy Commissioner Irving E. Minkin, P.E.

SUBJECT: Civil and Criminal Dismissals (Local Law 10/80)

Once a Notice of Violation of Department Rule Relating to Unsafe Conditions in Exterior Walls and Appurtenances Dangerous to Human Life and Safety (see Exhibit 1 attached) has been issued, the building owner is not to file the amended B Form 29 with the borough office, but with 120 Wall Street, Room 1505, New York, N.Y. (see Exhibit 2 attached), who will make determinations on appropriate dispositions in such instances.

Departmental personnel at the borough office should advise building owners who make inquiries hereafter accordingly.

All pending requests for dismissals of violations for unsafe facades are to be forwarded to the office of the Deputy General Counsel forthwith.


Irving E. Minkin, P.E.
Deputy Commissioner

IEM:ow

cc: Commissioner Fruchtman
Deputy Commissioner Parascandola
Assistant Commissioner Dennis
Assistant Commissioner Grill
Assistant Commissioner Cox
General Counsel Munoz
Executive Staff

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THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: November 10, 1980

TO: A. Louis Munoz, General Counsel
FROM: Irving E. Minkin, P.E., Deputy Commissioner
SUBJECT: Procedure to dismiss unsafe violations and grant extensions of time.

This memorandum establishes the procedure to be followed for dismissal of the unsafe violation and granting extensions for additional time for completion. All papers are to be submitted to the office of the Deputy General Counsel, 120 Wall Street, Room 1505, 15th floor, New York City, N.Y., 10005, telephone # (212) 248-8756.

A. STANDARDS WHICH MUST BE MET BY OWNER IN ORDER TO BE CONSIDERED FOR AN EXTENSION OF TIME TO COMPLY:

- 1) Copy of original B Form 29 report with all attachments.
- 2) The premises have been made safe by means of a shed, fence, or other appropriate temporary means.
- 3) A copy of the contract indicating the scope of the work to remedy the hazardous condition is attached.
- 4) Engineer's estimate of length of time required for repairs, with a detailed timetable is provided, and his assessment of temporary safety measures.
- 5) Property owner's notarized affidavit that work will be completed within stated time of engineer's estimate. (Owner must make a commitment that he will follow schedule set forth in engineer's report).

See Form A (LL 10/80)

Upon submission of the above forms, the Office of Operations, Department of Buildings, will make a determination whether an extension will be granted or denied. The first extension will have a 30-day maximum. A further extension will be considered, only upon a good faith demonstration by the owner that there has been:

- a) substantial completion of work due to an unforeseen delay (e.g., weather, labor strike).
- b) unforeseen circumstance (e.g., fire, building collapse).
- c) hazard which will take longer than 30 days to remove (e.g., new wall must be built).

See Form B (LL 10/80)

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A determination of extension by the Office of Operations, Department of Buildings, is to be made within five (5) days from the date a request for extension is received by Deputy General Counsel.

B. STANDARDS WHICH MUST BE MET BY OWNER IN ORDER TO HAVE VIOLATION DISMISSED WHERE OWNER FILED WITHIN 15 DAYS OF CERTIFIED MAILING OF CIVIL PENALTIES:

- a) Copy of original B Form 29 Report with all attachments.
- b) The architect or engineer who filed the original B Form 29, or another professional, files an amended B Form 29 at the borough office and at 120 Wall Street, Rm. 1505, stating that all of the unsafe conditions noted in the original B Form 29 have been corrected. THE NAME AND ADDRESS OF THE FIRM THAT DID THE REPAIR WORK AND THE SPECIFICS OF WHAT WAS DONE SHALL BE INDICATED.

Failure to submit specifics of repair work and firm's name and address will result in continued accrual of civil penalties until this information is supplied.

- c) The Office of Operations, Department of Buildings, will make the determination that the specific repair work conforms with the original inspection report B Form 29.
- d) The recommendation of the Office of Operations, Department of Buildings, will be forwarded to the Office of the Deputy General Counsel. He will notify the owners. Owners who have completed all repair work and the repair work is consistent with the original B Form 29 will have no civil penalties due. Owners who have not fully complied with the original B Form 29, will be notified of non-compliance and that civil penalties will accrue as if no amended report had been filed. These owners will have to submit new reports with documents to demonstrate that additional required work was performed.

The Office of Operations, Department of Buildings, will be given a list of all buildings which have complied. He will issue a spot check list and send inspectors to confirm that the stated work was completed.

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C. STANDARDS WHICH MUST BE MET BY OWNERS IN ORDER TO HAVE VIOLATIONS DISMISSED, WHERE OWNER FILED AFTER 15 DAYS OF REGISTERED MAILING OF CIVIL PENALTIES:

- a) Owners follow the same procedure as outlined in paragraph "B" above. However, they will be assessed a civil penalty of \$150 per day for each day after the 15th day.

All amended B Form 29 reports will be time-stamped and dated at 120 Wall Street when they are received. This is the date for the tolling of penalties. If the Office of Operations, Department of Buildings, determines that the material submitted in an amended B Form 29 indicate that there has been compliance with the requirements set forth in the original B Form 29, then civil penalties will be due as of the date stamped on the amended B Form 29. If the amended B Form 29 is rejected by the Office of Operations, Department of Buildings, then civil penalties will continue to be assessed until a further amended B Form B 29 is submitted and approved.

THE CITY OF NEW YORK
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DATE: August 2, 1982

TO: Borough Superintendents
FROM: Deputy Commissioner Irving E. Minkin, P.E.
SUBJECT: Local Law 10/80 NRF Violations

Supplementing my memorandum of 7/28/82 in regard to actions taken with respect to premises for which no reports have been submitted in regard to the facades of buildings subject to Local Law No. 10/80, this memorandum details my additional oral instructions in regard to the NRF violations themselves, as follows:

1. Since Local Law 10/80 and department rules set forth specific requirements for initial inspections to be made prior to 2/23/82, and reports to be submitted promptly thereafter, with significant cumulative penalties for failure to comply with the foregoing, no NRF violations are to be dismissed hereafter for initial inspections and reports filed tardily. However, submission of said report negates the necessity of complying with my memorandum of 7/28/82, provided the results of the report are taken into consideration by the plan examiner or inspector, as appropriate.
2. Supplemental reports complying with my memorandum of 6/4/82 may be accepted at any time as the basis for dismissal of hazardous violations.
3. This office will advise you further in regard to the disposition of NRF violations where reports have been submitted tardily, in violation of Local Law 10/80, after further discussions with the Law Department.
4. Issuance of summonses and/or notify letters for all premises for which no report has been submitted is to receive the highest priority, conjunctively with issuance of summonses for hazardous violations where no remedial action has been initiated by the owner.


Irving E. Minkin, P.E.
Deputy Commissioner

IEM:ap
cc: Commissioner Fruchtmann
Deputy Commissioner Parascandola
Asst. Commissioners Dennis, Grill & Cox
General Counsel Munoz
Executive Staff
Asst. Corp Counsels Gold, Lauer & Taussig
Mayor's Office of Operations
Ms. Barbara Shuman

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HOUSING AND DEVELOPMENT ADMINISTRATION
DEPARTMENT OF BUILDINGS

DEPARTMENTAL MEMORANDUM

DAYS: Jan. 11 1970

TO: Borough Superintendents

FROM: Thomas V. Burke, P.E., Director of Operations

SUBJECT: BOROUGH OFFICE DOCKET SHEETS FOR NEW BUILDINGS,
ALTERED BUILDINGS AND BUILDING NOTICE APPLICATIONS.

Commencing immediately, one copy of each borough office docket sheets listing New Building, Altered Building, and Building Notice Applications shall be sent regularly to:

Mr. Martin S. Gellman, Director
Bureau for Food Affairs, Room 402 C
Department of Health
125 Worth Street
New York, N.Y., 10013

Thomas V. Burke
Thomas V. Burke, P.E.
Director of Operations

TVE:WCK:ah

cc: File

1145